ONE-OFF SHIURIM

Why 39 Melakhot? Shabbat and the Levels of Holiness

Derech Hashem 4:7:3-5

Sefer: Derech Hashem by Rabbi Moshe Hayim Luzzatto (the Ramhal) **Section:** Part 4, Chapter 7, paragraphs 3-5 **Shiur:** Part of Dayan Daniel Kada's Derech Hashem series at Tiferet Eyal, Monday 4 April 2022

These notes are based on an automatic transcript of the recording.

Recap and a question about two days

The Rabbi reviewed the last class. We live in a mundane world, and God created holy places and holy times so that we do not sink into it. Shabbat falls on the seventh day because the end of a cycle gives structure and elevation to all that came before, and this ability was given to Israel alone.

A participant added that God chose just the right amount of holy time to keep the balance. The Rabbi agreed, and connected it to a question people ask before every festival: one day or two? He mentioned a spiritual opinion of the Hida, which is not followed as halachah but is sometimes added as a supporting consideration: it does not matter where you come from, only where you are. In Israel one day is enough to receive the holiness of the festival; outside Israel two days are needed. A participant noted the difference from Shabbat, whose holiness comes automatically, while the festivals are brought in by the calendar fixed by the Sanhedrin.

Why the 39 melakhot (paragraph 3)

Because Shabbat is so elevated, our behaviour must change on it. During the week, engaging with the physical world through work pulls us into the mundane and down from the level fitting for us. On Shabbat we must be released from that.

But a person cannot be separated from the physical world completely. God in His wisdom set how much we are to be stripped of it, and that is why there are 39 melakhot, not 59. On one hand we are not cut off entirely; we still live in a physical world. On the other, the measure is enough to stop us falling too far into it.

The melakhot God chose are creative developments of the physical world. "We are human beings, not human doings": on Shabbat we try just to be, not to do. And this is learned from the Mishkan, because the holiest place and the holiest time correspond.

What about the rabbinic laws?

On a simple level they are a fence. But the Rabbi asked the group to picture Shabbat in the time of the prophets, before Hazal's decrees. Could a person open his shop on Shabbat and buy and sell? Handling money is muksah, but that is rabbinic; measuring is rabbinic. Strictly by the Torah, he could.

Yet people did not, because the spirit of Shabbat permeated them. "You just didn't feel right doing things." The Rabbi added that ultimately the spirit of Shabbat is something each person must appreciate for himself; no rabbi can decide it for him. In those days it was obvious: what I do in the week, I do not do on Shabbat. As generations went down, people were sucked further into the mundane and found loopholes, so Hazal added muksah, the laws of measuring and the rest. These are a fence, but also an attempt to re-instil the spirit of Shabbat. "As generations go down, you need more and more legislation."

Honouring Shabbat (paragraph 4)

Besides the prohibitions, God commanded us to honour the holiness that comes down: Kiddush, the meals, washing before Shabbat, clean clothes. All of these honour the special day and the great closeness to God it brings.

A participant asked whether without these the holiness would dissipate. The Rabbi thought not: Shabbat is automatic, "Shabbat will always be Shabbat," from the beginning of creation. These are about respecting it.

This is zakhor and shamor: the positive and the negative, love and fear. "If you're spending the majority of Shabbat talking about what you can't do, that's not good." Nor is a Shabbat of only lovely things without the boundaries. The two together form the right relationship with God.

Holiness upon holiness (paragraph 5)

God then gave Israel further holy days besides Shabbat, through which they receive more levels of sanctification. But the bonus is never greater than the main thing: "The holiness of Yom Tov will never be greater than that of Shabbat." People get excited about Pesah because it is rare, but the weekly holiness of Shabbat is far greater.

The Rabbi pointed to the punishments. Desecrating Shabbat carries the death penalty, Yom Kippur karet, and Yom Tov (including Rosh Hashanah) lashes. He observed that some people who would never drive on Yom Kippur drive on Shabbat, though Shabbat is the more severe.

According to each day's holiness, so is the separation from the physical:

1. Shabbat: the highest. Yom Kippur has the same melakhot, but Shabbat's penalty is greater.
2. Yom Kippur: no work, even for food.
3. The festivals: Pesah, Shavuot and Sukkot, where food preparation is allowed.
4. Hol HaMoed: work is restricted, whether biblically or rabbinically is a dispute, but there are no lashes.
5. Rosh Hodesh: women have a custom not to do heavy work.
6. Hanukkah and Purim: no restriction on work.

Rosh Hodesh and the women

The Rabbi explained that refraining from work on Rosh Hodesh is a custom, not halachah. Its reason: after the golden calf the honour of Rosh Hodesh was taken from the men and given to the women, who had not taken part, which is why the custom is for women only. A participant compared the custom on Hanukkah not to work while the candles burn, and the Rabbi agreed, but that is only half an hour, whereas Rosh Hodesh is the whole day. On Purim the halachah says that one sees no blessing from work, though it is permitted.

Asked about the idea that Yom Kippur is "like Purim", the Rabbi said it is a purely Kabbalistic idea from the Zohar with no halachic weight. "You have to always go to the source of things." By the Torah, Purim is nowhere near Rosh Hodesh, Hol HaMoed or the festivals.

The next class, the last before Pesah, will begin the following chapter on the festivals, with Pesah and massah.

Summary

- The 39 melakhot are the measure God set to free us from the mundane without cutting us off from the physical world; they are acts of creative development.
- Before the rabbinic decrees, the spirit of Shabbat alone kept people from weekday activity; the decrees became necessary as generations declined.
- The positive misvot of Shabbat honour its holiness; zakhor and shamor must be in balance.
- The festivals add holiness but never exceed Shabbat, as the penalties show.
- The restrictions on work follow each day's level, from Shabbat down to Hanukkah and Purim.

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